

		Additionally, “local counsel” is not actually local, but works in Colorado. Local counsel is Arron B. Nesbitt (Ca State Bar No. 202948), 216 16th Street, Suite 1100, Denver, Colorado 80202, (720) 798 1620. While CRC 9.40(d) only requires the “name, address, and telephone number of the active licensee of the State Bar who is attorney of record”, it is unclear if the active licensee is required to work/reside in California. What are the practical implications of having no truly local counsel? Finally, while Attorney Nesbitt declares, “I have served a copy of this declaration and the application for admission on the San Francisco offices of the State Bar of California with the necessary fee” (Nesbitt Decl.¶7), the State Bar of California is not listed on the proof of service, and Attorney Nesbitt provides no proof of payment. Applications are otherwise compliant. To avoid a continuance or denial of these motions, Attorneys are ordered to appear at the hearing and be prepared to discuss the above. If attorneys do not appear, the Court will continue this motion without prejudice.
106	Nguyen vs. Yadidi 26-01545507	1. Motion to Seal 2. Motion to Appoint Receiver 3. Case Management Conference Plaintiff Minh Nguyen, D.O., individually and derivatively on behalf of Agile Occupational Medicine, PC (“Plaintiff” or “Dr. Nguyen”) seeks an order appointing a limited receivership over Agile Occupational Medicine, PC (“Agile PC”) and issuing a preliminary injunction in aid of the receivership. The motion is DENIED.

		Code Civ. Proc., § 564 sets forth when a receiver may be appointed; Plaintiff relies on subsections (b)(1) and (9), which state that “A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: (1) In an action . . . between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, . . . where it is shown that the property or fund is in danger of being lost, removed, or materially injured. (9) In all other cases where necessary to preserve the property or rights of any party. Cal. Civ. Proc. Code § 564(b)(1), (9). A receivership is an equitable remedy, and thus the equitable considerations in an injunction proceeding apply—i.e., there must be a showing of irreparable injury and inadequacy of other remedies. (<i>Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.</i> (1953) 116 Cal.App.2d 869, 872.) The appointment or refusal to appoint a receiver rests entirely within the discretion of the trial court. (<i>Elson v. Nyhan</i> (1941) 45 Cal.App.2d 1, 4.) Because the appointment of a receiver transfers property...out of the hands of its owners and into the hands of a receiver [citation], the appointment of a receiver is a very drastic, harsh, and costly remedy that is to be exercised sparingly and with caution.” (<i>Koenig v. Centralia Limited Investors</i> (2025) 112 Cal.App.5th 1174, 1192 [internal quotations omitted]; see also <i>Turner v. Superior Court</i> (1977) 72 Cal.App.3d 804, 809 (citing <i>Hoover v. Galbraith</i> (1972) 7 Cal.3d 519, 528).) Here, the Court finds that the evidence presented by Plaintiff does not support the drastic relief sought by way of this motion. Plaintiff contends that Defendants are operating Agile PC unlawfully, and that a receiver is necessary to maintain Agile PC’s status quo while
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this action is pending. By way of this action, Dr. Nguyen seeks, amongst other things, to restore his ownership shares and position as sole director of Agile PC. (FAC, Prayer, ¶ 3.)

A review of the evidence presented by both sides shows that each side contends that the other engaged in practices that were not in the best interest of Agile PC and/or were unlawful. (See Nguyen Decl.; Yadidi Decl.) On the whole, the Court is not persuaded that Agile PC is in danger of being lost or materially injured in the absence of a receiver.

For example, one of Dr. Nguyen’s major grievances is that he and Dr. Yadidi were allegedly unlawfully told to “report” to Agile MSO’s CEO, Peter Murray, who is not a physician. (Nguyen Decl. ¶ 19.) However, the only evidence Dr. Nguyen provides of this alleged requirement is a single sentence in an email from Brandon Gold, Vice President of Operations of Defendant Angeles Equity Partners, who stated “ . . . Dr. Yadidi is the CMO of legacy Akeso clinics (south) and you are CMO of the legacy Agile clinics (north). Both roles report into Peter [Murray] directly.” (Nguyen Decl., Exh. 11.)

In opposition, Defendants provide the declaration of Brandon Gold, who explains that Dr. Nguyen’s purported interpretation of this sentence is incorrect. Mr. Gold credibly explains that the statement in his email “was incomplete and did not explain that [he] meant in regard to both Plaintiff’s and Dr. Yadidi’s respective roles as Clinical Liaisons for Agile MSO, which is a completely administrative position, and their business management services in support thereof.” (Gold Decl. ¶ 12.)

Dr. Yadidi corroborates Mr. Gold’s statement with his own declaration, in which he states: “In my role as CEO and CMO of Agile PC, I have never had a reporting relationship to Agile MSO or to Peter Murray, CEO of Agile MSO, nor has any suggestion

ever been made.” (Yadidi Decl ¶ 15.) Murray also provides a declaration indicating that Dr. Nguyen “never reported to Agile MSO or to me, CEO of Agile MSO in his role as Chief Medical Officer of Agile PC. However, in his role as an employee of Agile MSO as a Clinical Liaison, he did report to me regarding the business management services he was tasked with performing pursuant to his Clinical Liaison Employment Agreement.” (Murray Decl. ¶ 15.)

The Court finds these explanations credible, as the phrase “report into” suggests the delivery of information (i.e., that Murray would be the point of contact at Agile MSO), as opposed to signifying a supervisor/subordinate relationship. (Nguyen Decl., Exh. 11 (emphasis added).) Further, Plaintiff offers no evidence, other than his own declaration, to support his interpretation. Plaintiff claims he “continually objected” to the alleged requirement to report to Murray, but provides no evidence of any written objections—or any response from Defendants asserting that Dr. Nguyen was to be overseen by Murray. (See Nguyen Decl. ¶¶ 20-23.)

As another example, Dr. Nguyen asserts that Agile MSO’s Chief People Officers, Phuong Goodwin, as well as Mr. Murray and Dr. Yadidi unilaterally decided to terminate a physician in contradiction to the medical credentialing committee’s decision. (Nguyen Decl. ¶ 34.) Dr. Nguyen was the chair of the credentialing committee. (Ibid.) Dr. Nguyen contends that the committee decided to keep the physician because he was not a threat to patient safety, and he worked in an underserved community. (Ibid.) Plaintiff asserts that “Ms. Goodwin, Mr. Murray, and Dr. Yadidi's decision to immediately terminate the physician improperly usurped Agile PC's ultimate authority (and my professional judgment as supervisory physician) over peer review of providers and employment decisions relating to their credentials, proficiency, and performance.” (Id.)

Plaintiff cites to Exhibit 16, which is an email from Mr. Murray to Dr. Nguyen, Dr. Yadidi, Ms. Goodwin, and others regarding an executive team staff meeting that took place the previous day. (Nguyen Decl., Exh. 16.) Although the email is from Mr. Murray, it states that “Dr. Yadidi concludes, and we agree, that there is no ability for agile to resolve issues with Dr. [redacted] and he must be terminated immediately as he has engaged in unethical professional conduct resulting in him losing his credentialing and being banned from seeing patients by several payers . . . Dr. [redacted]’s prior sexual relationship with a patient constitutes gross negligence, a violation of the doctor patient relationship, medical ethics, and is directly representative of a lack of quality care.” (Nguyen Decl., Exh. 16.)

Thus, the evidence appears to show that Dr. Yadidi (a physician) made the decision that this physician should be terminated, due to a variety of factors. Further, Dr. Yadidi testifies in his declaration that he made the decision to terminate the provider, and that he did not agree with Dr. Nguyen’s solution “to allow the provider to fraudulently bill under Dr. Nguyen’s information.” (Yadidi Decl. ¶ 52.)

As an additional example, Dr. Nguyen contends that Dr. Yadidi implemented a directive that all employees complete a one-day steroid injection training and that providers must perform steroid injections rather than re

Decl. ¶ 36.) Dr. Nguyen contends that “the idea that a one-day training session would satisfy best practices or meet the standard of care for patients is preposterous. I did not approve of this directive, and in my professional judgment, it is contrary to good medical practice.” (Ibid.) Dr. Nguyen has not provided any independent expert testimony on this issue, and thus the Court has no way of evaluating whether such a practice is truly unreasonable.

		Overall, it is not at all clear that Agile PC is in danger of material harm from Defendants, such that the drastic remedy of appointing a receiver would be warranted. Accordingly, the motion is denied. <u>Requests for Judicial Notice</u> Plaintiff's requests for judicial notice are GRANTED. <u>Objections</u> Defendants' Objection Nos. 1-73 to the Nguyen Declaration are OVERRULED. Plaintiff's objection Nos. 1-2 to the Gold Declaration are SUSTAINED for lack of foundation. Objection Nos. 3-9 to the Gold Declaration are OVERRULED. Plaintiff's objection Nos. 1-2, 4, 6, and 7 (as to the first two sentences only) to the Murray Declaration are OVERRULED. Objection No. 3 is SUSTAINED for lack of foundation, No. 5 is SUSTAINED for lack for improper lay opinion, improper legal conclusion, and relevance, No. 7 as to the attempted authentication of Exhibit B is SUSTAINED for lack of foundation. Plaintiff's objection Nos. 1-10, 12-41 to the Yadidi Declaration are OVERRULED. Objection No. 11 is SUSTAINED for lack of foundation. The Court declines to rule on the remainder of the objections as immaterial to the disposition of this motion. Plaintiff to give notice.
107	Lorenzini vs. Revolashion, LLC 26-01547153	Motion for Sanctions Defendants Ilona Alidzaeva and Alexandre Lamothe ("Defendants") move for an order granting monetary